

19STCV43923 19STCV43923

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Case Number: 19STCV43923 Hearing Date: September 17, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

BRIAN GATE,

Plaintiff,

vs.

AUTO-CHLOR SYSTEM OF WASHINGTON, INC.,

Defendant.

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CASE NO.: 19STCV43923

[TENTATIVE] ORDER DENYING MOTION FOR ATTORNEY FEES; GRANTING IN PART MOTION TO TAX COSTS

Dept. 506

8:30 a.m.

September 17, 2026

On January 30, 2025, a jury returned a verdict in favor of Plaintiff Brian Gate and against Defendant Auto-Chlor System of Washington, Inc., awarding Plaintiff \$600,000.00 for past economic loss and past non-economic damages. In a second phase, the jury awarded Plaintiff \$100,000.00 in punitive damages.

On January 30, 2026, the Court entered judgment in favor of Plaintiff for the principal amount of \$700,000, plus post-verdict interest.

On February 17, 2026, Plaintiff filed a Memorandum of Costs.

On April 20, 2026, Plaintiff filed a motion for attorney fees.

On April 21, 2026, Defendant filed a motion to tax costs.

The Court does not rule on any objections to the evidence originally submitted in support of each motion or opposition because the objected-to evidence was not material to the Court's decision.

MOTION FOR ATTORNEY FEES

California courts apply the "lodestar" approach to determine what fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) This inquiry "begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) From there, the "lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (*Ibid.*) Relevant factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*)). The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates.

(City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 784.)

A. The Court Does Not Consider Plaintiff's Voluminous and Belated Reply Evidence.

With his Reply, Plaintiff provides a "Notice of Errata" and four additional declarations with exhibits. The Court will not consider any of these submissions.

The Notice of Errata includes "a corrected timesheet to include page numbers after page 81" because "Plaintiff inadvertently forgot to add page numbers to that spreadsheet when it was printed from Excel to PDF and was only aware upon reading Defendant's Opposition." As Defendant observes in its objections, this exhibit "still is not in chronological order showing all work billed on a particular day by all attorneys and paralegals in one place, thereby continuing to obfuscate the duplicative billing and render court and counsel's efforts to analyze the time entries extremely burdensome and impracticable."

The four declarations and their exhibits total 909 pages. The Court generally will not consider new evidence submitted with a reply. (See Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538.) The Court emphatically rejects all of this new evidence because it is patently unreasonable to withhold this much information until Defendant pointed out Plaintiff's original deficiencies.

B. Plaintiff Has Not Met His Burden of Showing That His Fee Request Is Reasonable.

Plaintiff seeks fees for 2,820.8 hours of work billed at hourly rates ranging from \$425 to \$1,300, totalling \$2,758,530.50. Plaintiff also requests a 2.0 lodestar multiplier on some fees (lodestar of \$3,951,466.00), for a total fee award of \$4,893,903.50.

Plaintiff bears the burden of proof for establishing his reasonable attorney fees. (Code Civ. Proc., § 1033.5, subd. (c)(5)(A).) Acknowledging this, Plaintiff asserts, "Plaintiff has satisfied his burden by submitting declarations from his attorneys testifying that the time and services provided were reasonable. . . . Given that this case has been worked on for over 6 years, it should not be surprising that counsel expended thousands of hours and required multiple attorneys." (Motion at pp. 15-16.) But this is merely a conclusion about reasonableness. For the reasons detailed below and expressed in the Opposition, the Court finds that Plaintiff has not established the reasonableness of his fees.

Excessive time was spent on routine tasks. For example, Plaintiff seeks 70.3 hours of attorney time to summarize the 210-page deposition of a single witness. (Opposition at p. 1; see id. at p. 11.) This is an average of over 20 minutes per page, just to "summarize" the testimony. Over 28 hours were spent to prepare for a two-hour deposition. (Id. at p. 10.)

Excessive time was billed for time that did not advance the case. For example, Plaintiff's original attorney billed 73.1 hours at \$1,200/hour to sit in the back of the courtroom throughout the 10-day trial, billing a total of \$87,720. (Opposition at p. 1.) A new attorney billed 78.8 hours at \$500/hour for taking notes without participating in the trial, billing a total of \$39,400. (Ibid.)

Travel time and administrative time were also billed in excessive amounts. (Opposition at pp. 11-12.) This includes time billed by five to eight attorneys reading "trial team" emails, reflecting inefficiency by counsel and duplicative work. (Id. at pp. 12-13.)

One attorney block-billed 13 hours in a single day (at \$1,200/hour) for "Preparation of fee petition materials including reconstruction of time entries, review of billing records, preparation of time register, review of case file and correspondence to verify entries, and preparation of supporting declaration." (Opposition at p. 12.) This time—particularly the task of "reconstruction of time entries"—establishes the inaccuracy of the original billing records. "Contemporaneous time records surely are a bother to keep. But people paying those bills are entitled to care about accuracy. At hundreds of dollars an hour, minutes here and minutes there add up. Accuracy is a professional virtue and a systemic concern. The public is entitled to confidence the justice system is just as careful about getting legal bills right as it is about getting everything else right. And

exact clocks and timekeeping software have made it rather easy to be accurate—extremely accurate.” (Taylor v. County of Los Angeles (2020) 50 Cal.App.5th 205, 214.)

Plaintiff’s justification for an additional 2.0 multiplier also lacks support. Plaintiff focuses, in part, on the uncertainty of contingency litigation. (Motion at pp. 22-24.) But “a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (Ketchum, supra, 24 Cal.4th at p. 1139.) This matter was not noticeably different from other employment cases, this matter did not involve complex or novel legal issues warranting a multiplier, and Plaintiff’s counsel has extensive experience litigating similar matters. Despite the length of time from case inception to trial, there are no indications that Plaintiff’s counsel engaged in any actions different from a typical strategy to achieve this result.

“It is the obligation of the party (and attorney) seeking the fee award ‘to prune the fee request to comply with the law,’ and the party (and attorney) cannot ‘transfer that responsibility onto the trial court.’” (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 280.) Plaintiff has not satisfied his obligations. “Judges are not like pigs hunting for truffles buried in briefs.” (Greenwood v. FAA (1994) 28 F.3d 971, 977.) As expressed by Defendant, “This is not a class action. This is not a multi-plaintiff or multi-defendant case. It simply is not the law that in order to assess reasonable fees in this case this Court must comb through 334 pages of billings to determine what is reasonable and what is not.” (Opposition at p. 2.) The Court cannot—and will not—attempt to parse the records to determine a reasonable amount of hours.

“A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.) “‘If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place.’” (Ibid.)

Accordingly, the motion for attorney fees is denied.

MOTION TO TAX COSTS

Plaintiff seeks to recover \$503,685.03 in costs, including \$377,001.21 in “Other” costs. Plaintiff’s attachment shows that these costs include airfare, hotels and AirBnB, mileage, Uber rideshares, parking, “A/C Interest,” and “998 Interest.”

“A ‘verified memorandum of costs is prima facie evidence of the propriety’ of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (Adams).) “[I]f the correctness of the memorandum is challenged either in whole or in part by the affidavit or other evidence of the contesting party, the burden is then on the party claiming the costs and disbursements to show that the items charged were for matters necessarily relevant and material to the issues involved in the action.” (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 699.)

A. Plaintiff’s Prejudgment Interest Must Be Reduced.

A plaintiff may recover prejudgment interest in personal injury actions when the Defendant does not obtain a more favorable judgment than the Section 998 offer. (Civ. Code, § 3291.) But this was not a personal injury action. The special verdict awarded Plaintiff \$534,000 in past economic loss for FEHA retaliation and \$66,000 in past non-economic damages. Even if the non-economic damages put this claim into the realm of personal injury, under Section 3291, the Court may award prejudgment interest only on damages attributable to personal injury. (Lakin v. Watkins Associated Industries (1993) 6 Cal.4th 644, 659.)

Accordingly, the Court reduces prejudgment interest to 10% per annum from the date of Plaintiff's first offer that was exceeded by the judgment. (Civ. Code, § 3291.) Plaintiff's February 3, 2021 offer under Section 998 was for \$800,000 "inclusive of attorney fees; each side to bear their own costs." (Ciarimboli Decl., Ex. A.) There are 1822 days from February 3, 2021 to the January 30, 2026 judgment. The \$66,000 in past non-economic damages accrued 10% annual interest at a rate of \$18.08 per day (\$6,600/year divided by 365 days). Accordingly, Plaintiff may recover \$32,941.76 in prejudgment interest (\$18.08 for 1822 days). The Court reduces the \$299,506.92 in "998 Interest" by \$266,565.16, for a total of \$32,941.76.

Defendant's interest challenge includes the \$49,815.66 in "A/C Interest." (See Motion at pp. 1-3.) Plaintiff explains that this cost "relates to interest charges for which Plaintiff incurred financing his costs because he was unable to afford them." (Opposition at p. 17.) Counsel's firm "uses a line of credit with Advocate Capital to front the costs for litigation for Plaintiff," and "the funding of these costs accrue interest each month and Plaintiff is responsible for this interest." (Ibid.) Plaintiff cites no authority for this interest being recoverable. Accordingly, the Court deducts \$49,815.66.

In sum, the Court deducts \$316,380.82 (\$266,565.16 plus \$49,815.66) in prejudgment interest.

B. Plaintiff May Not Recover Travel Costs.

Defendant moves to strike \$6,151.82 in costs related to non-deposition travel. (Motion at p. 3.) Plaintiff contends that these costs were reasonable and necessary because "[t]rial work cannot be done solo; it requires a team to do it efficiently and successfully." (Opposition at p. 8.) Plaintiff notes that lead trial counsel resides in Sacramento, the co-chair lives in Orange County, and one attorney lives in San Diego. (Id. at pp. 8-9.) Counsel therefore required lodging and transportation/parking each day of trial. (Ibid.)

The Court concludes that these costs, which are not recoverable as of right, were merely convenient or beneficial. (See Code Civ. Proc., § 1033.5, subd. (c)(2).) The Court therefore deducts \$6,151.82.

C. Plaintiff May Not Recover Costs For Deposition Summaries From Another Case.

Defendant seeks to strike \$1,242 for deposition summaries from another case. (Motion at pp. 3-4.) Plaintiff provides no authority for this being recoverable in this action. (See Opposition at pp. 9-10.)

The Court therefore deducts \$1,242.00.

D. Plaintiff May Not Recover All Expert Travel Costs.

Defendant moves to strike \$25,000 of the \$38,962.19 expert witness fees attributed to EconOne and \$10,000 of the \$20,700.00 in travel costs for trial and hotel costs for deposition when the deposition was taken by Zoom teleconference. (Motion at p. 4.)

Defendant argues that some of the expert fees were for duplicative tasks. (Motion at p. 5.) The Court cannot conclude that all of these costs were unreasonable or unnecessary. However, the Court does deduct \$1,169.89 in travel expenses for Dr. Mahla and \$1,050.00 in hotel and travel expenses for Dr. Reading. (Id. at pp. 5-6.)

E. Plaintiff May Not Recover All Filing and Delivery Fees.

Defendant moves to strike \$678.35 of Plaintiff's filing fees. (Motion at pp. 6-7.) Some of Plaintiff's costs include minute orders and other docket items (\$44.60), which appear to be the cost for downloading documents—an administrative expense. The Court deducts only \$44.60 because the other fees do appear to be valid filing fees.

Defendant also moves to strike \$5,849.70 in "fees for electronic filing or service" because they are not genuine filing fees. (Motion at p. 7.) After reviewing Plaintiff's attachments to the Memorandum of Costs, the Court finds that these costs are reasonable.

CONCLUSION

The motion for attorney fees is DENIED.

The motion to tax costs is GRANTED IN PART. Plaintiff may recover \$177,645.90 in costs (\$503,685.03 minus \$326,039.13, with deductions consisting of \$316,380.82 in prejudgment interest, \$6,151.82 in travel/lodging, \$1,242.00 for deposition summaries, \$1,169.89 in travel expenses for Dr. Mahla, \$1,050.00 in hotel and travel expenses for Dr. Reading, and \$44.60 in filing fees).

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 17th day of September 2026

Hon. Thomas D. Long

Judge of the Superior Court